

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-03

JC HORIZON LTD.

COMPLAINANT

v.

CHINA SHIPPING CONTAINER LINES CO. LTD.

RESPONDENT

**JOINT MOTION FOR APPROVAL OF
SETTLEMENT AND VOLUNTARY DISMISSAL**

Pursuant to Rule 72(a)(3) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.72(a)(3), Complainant JC Horizon Ltd. ("JCH") and Respondent China Shipping Container Lines Co. Ltd. ("CSCL") submit this joint motion for approval of their settlement and voluntary dismissal of the claims in this action.

JCH filed its complaint in this action on May 9, 2018. The claims at issue relate to CSCL's assessment of detention and demurrage charges arising out a service contract between the parties for the shipment of 38 containers from the United States to China in fall 2014. CSCL filed its answer on June 25, 2018. Prior to the time JCH filed its complaint with the Commission, the parties had proceeded to an arbitration which resulted in an award in CSCL's favor. On May 10, 2018, CSCL filed a petition in the Southern District of New York (Dkt. No. 18 Civ. 04195 (ANJ)) to confirm and enforce the arbitration award. The Parties have now

negotiated a settlement which resolves all outstanding disputes regarding the fall 2014 container shipment.¹ The Parties respectfully request that the Commission approve the settlement.

The Commission has a strong and consistent policy of encouraging “settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.” *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002) (quoting *Old Ben Coal Co. v. Sea-Land Serv, Inc.*, 18 S.R.R. 1085 1091 (ALJ 1978)). The Commission reviews settlement agreements to make sure that they do not contravene law or public policy, and are free of fraud, duress, undue influence, or other defects that would render them unapprovable.

The Parties recognize that the Commission does not merely rubber-stamp settlements agreements. Here, however, the settlement is the result of arms-length negotiations between two sophisticated entities, both of whom were represented by counsel at all times. The agreed resolution does not contravene any law or public policy. It is not an unjust or discriminatory device, nor will it have any adverse effect on any third parties or on the shipping public. Rather, the settlement is fair and reasonable, and reflects the Parties’ desire to resolve their issues without the need for costly and uncertain litigation.

Because the Parties’ agreed settlement is fair and reasonable, and is the product of prudent and considered judgment by both Parties, the Parties respectfully request that this Joint Motion for Approval of Settlement and Voluntary Dismissal be granted, that the Parties’ settlement be approved, and that this action be dismissed with prejudice, with each party to bear its own costs.

¹ A copy of the Parties’ agreement, titled “Satisfaction of Award and Release,” is attached hereto as Exhibit A.

Date: July 31, 2018

Respectfully submitted,



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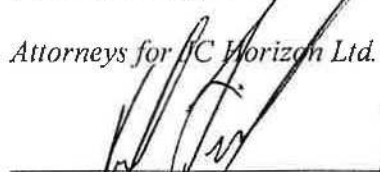
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